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April 15, 2025

ENGROSSED HOUSE
BILL NO. 2705

By: Ford, Fugate, Munson, and
McCane of the House

and

Haste of the Senate

An Act relating to sexual assault victims; directing law enforcement agencies to inform sexual assault victims of the status of certain evidence; allowing for submission of written requests; specifying list of rights for sexual assault victims; stating intent of statute; allowing law enforcement to deny disclosure under certain circumstances; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 142C-6 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Upon the request of a sexual assault victim, the investigating law enforcement agency shall inform the victim of the status of the sexual assault forensic evidence from the criminal case of the victim. The law enforcement agency may, at its discretion, require that the request by the victim be in writing. The provisions of this subsection shall not require a law

1 enforcement agency to communicate with the victim or the advocate of
2 the victim regarding the status of forensic testing absent a
3 specific request from the victim or advocate of the victim.

4 B. Sexual assault victims have the right to be informed of the
5 following:

6 1. Whether or not a deoxyribonucleic acid (DNA) profile was
7 obtained from the testing of the sexual assault forensic evidence
8 from the criminal case of the victim;

9 2. Whether or not the DNA profile developed from the sexual
10 assault forensic evidence has been entered into the Combined DNA
11 Index System (CODIS) Database; and

12 3. Whether or not there is a confirmed match between the DNA
13 profile developed from the sexual assault evidence and a DNA profile
14 contained in the Combined DNA Index System (CODIS) Database.

15 C. This section is intended to encourage law enforcement
16 agencies to notify victims of information that is in the possession
17 of the law enforcement agencies.

18 D. This section shall not require the disclosure of evidence,
19 information, or results which would impede or compromise an ongoing
20 criminal investigation.

21 SECTION 2. This act shall become effective November 1, 2025.

22 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
23 April 15, 2025 - DO PASS
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